



File No.: EXP202201047

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated December 16, 2022, and based on the following:

FACTS

FIRST: On December 16, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure EXP202201047 against PLANET COSTA DORADA SOCIEDAD LIMITADA.

SECOND: By virtue of the provisions of Article 77.2 of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation, the now appellant was informed, in their capacity as complainant, of the conclusion of the procedure initiated as a result of their complaint.

THIRD: On March 28, 2023, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202201047, expressing disagreement with the contested resolution.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

In accordance with the provisions of Article 62.5 of the LPACAP, the appellant lacks the status of interested party in the sanctioning procedure, as it states that the filing of a complaint does not, by itself, confer the status of interested party in the procedure. Furthermore, by virtue of Article 116 b) of the LPACAP, the lack of standing of the appellant constitutes grounds for inadmissibility of the recourse.

Having reviewed the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection dated December 16, 2022, in the sanctioning procedure EXP202201047.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative pathway, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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